

Calendar Line 5**Case Name:** *Jane Doe v. Wanderlust Trust et al.***Case No.:** 25CV462561

Demurrer to First Amended Complaint by Defendant Alyssa Thach Terrizzano, Trustee of the Wanderlust Trust.

Procedural and Factual Background

On May 16, 2025, self-represented plaintiff Jane Doe (“Plaintiff”) filed the first amended complaint (“FAC”) against defendants Wanderlust Trust (“Trust”) and Alyssa Thach Terrizzano, as trustee of the Wanderlust Trust (“Trustee”; collectively, “Defendants”) alleging the following causes of action; (1) violation of the Rehabilitation Act and Fair Housing Act; (2) violation of the Fair Housing Act; and (3) discrimination of tenant’s source of income through California Fair Employment and Housing Act (FEHA).

Plaintiff brings this action against Defendants for their policy and practice of unlawfully discriminating against individual in the leasing of housing accommodations. (FAC, ¶ 1.) Specifically, the housing provider, NorCal Property Management Company (“NorCal Property”), and property manager, David Krause, discriminated against Plaintiff based on her status as a Housing Choice Voucher or “Section 8” recipient. (*Id.* at ¶¶ 5, 7.)

On April 3, 2023, Plaintiff contacted NorCal Property about a 2-bedroom duplex located in Los Gatos, California with a posted promise of “First Come First Serve” and viewed the property that same morning. (FAC, ¶¶ 36-38, 59.) After viewing the property and confirming that NorCal Property had not received any applications, Plaintiff immediately submitted an application with her current credit report, proof of income, bank statements, social security number, driver’s license photo, Section 8 housing voucher, and references. (*Id.* at ¶¶ 61-64, 67.) On April 4, 2023, NorCal Property mistakenly contacted Plaintiff about an open house for the same property, and Plaintiff attended the showing in disguise. (*Id.* at ¶ 74.) At the showing, Plaintiff heard that no applications had been submitted, and on April 6, 2023, learned that the property had been rented to another applicant after the April 4th showing. (*Id.* at ¶¶ 75-76.) Plaintiff alleges that the property manager refused to rent the property to her because of her disability and status as a Section 8 recipient. (*Id.* at ¶ 80.)

On September 29, 2025, the Trustee filed the instant demurrer. Plaintiff filed a timely opposition, and the Trustee filed a timely reply.

Demurrer to the FAC

The Trustee demurs to the entire FAC on the ground that Plaintiff improperly named the Trust as a defendant, and accordingly, the FAC fails to state sufficient facts to constitute a cause of action against the Trust. The Trustee also demurs to the first through third causes of action on the grounds that the claims fail to state sufficient facts to constitute a cause of action and are uncertain. (Code Civ. Proc., §§ 430.10, subds. (e)-(f).) Finally, the Trustee demurs to the claim for interest on the ground that no claim would qualify for interest.

Legal Standards

A demurrer may be utilized by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (Code Civ. Proc., §§ 430.10, 430.50, subd. (a).) These grounds include that “[t]he pleading does not state facts sufficient to

constitute a cause of action” or “[t]he pleading is uncertain.” (Code Civ. Proc., § 430.10, subds. (e)-(f).)

In ruling on a demurrer, the court treats the motion “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318].) “The reviewing court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded. The court does not, however, assume the truth of contentions, deductions or conclusions of law.” (*Gregory v. Albertson’s, Inc.* (2002) 104 Cal.App.4th 845, 850.) However, it has long been held that on demurrer, leave to amend should be granted where “there is a reasonable possibility that the defect can be cured by amendment.” (*Loeffler v. Target Corp.* (2014) 58 Cal.4th 1081, 1100; see also *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 687.)

In California, self-represented litigants are held to the same standards as attorneys and must comply with the California Rules of Court and Rules of Civil Procedure. (See *Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543 [“Pro per litigants are held to the same standards as attorneys. [Citation.]”].)

Preliminary Issues

Plaintiff asserts that the demurrer is moot because it addresses only the three causes of action referred in the original April 4, 2025 complaint, not the six causes of action alleged in the May 16, 2025 FAC. The argument is unpersuasive. While the FAC’s caption does list six causes of action, the body of the FAC itself only alleges three. In any event, a defendant may properly demur to the pleading as a whole or any cause of action stated therein. (Code Civ. Proc., 430.50, subd. (a).)

Plaintiff also asserts that a default should be entered against Defendants for failing to respond to the amended complaint within 30 days of the May 29, 2025 service date (*i.e.* June 28, 2025.) To the extent Plaintiff complains that Defendants have not filed an answer to the FAC, the argument lacks merit as a demurrer constitutes an adequate response to the FAC. Moreover, the delay in filing the demurrer is partly due to the Trustee’s request for an automatic 30-day extension and the parties’ meet and confer efforts. Furthermore, the Court has discretion to hear an untimely demurrer “so long as its action does ‘not affect the substantial rights of the parties.’ [Citations.]” (See *McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 282; see also Code Civ. Proc., § 473, subd. (a)(1).)

Discussion

The Trust is an Improperly Named Defendant

The Trustee is correct in demurring to the FAC on the ground that a “trust itself cannot sue or be sued.” (*Portico Management Group, LLC v. Harrison* (2011) 202 Cal.App.4th 464, 473 [quoting *Presta v. Tepper* (2009) 179 Cal.App.4th 909, 914].) While Plaintiff properly names the Trustee as a defendant, this does not mean that Plaintiff may also name the Trust as a defendant. (See *Estate of Bowles* (2008) 169 Cal.App.4th 684, 691 [“As a general rule, the trustee is the real party in interest with standing to sue and defend on the trust’s behalf.”]) The Court therefore SUSTAINS the demurrer with 20 days’ leave to amend. (Code Civ. Proc., § 430.10, subd. (e).)

Failure to State Sufficient Facts as to the Trustee

In demurring to the first, second, and third causes of action of the FAC, the Trustee asserts that the FAC fails to plead any facts or allegations against the Trustee. The argument is persuasive. The FAC is replete with allegations against “Defendant(s) Property Management Company” and “Defendant’s Property Manager” but does not explain the relationship between the Trustee, Property Management Company and Property Manager. The FAC only refers to the Trustee in stating the causes of action. (See e.g., FAC, p. 16:20-21.) The factual allegations do not shed light on how the Trustee is related to the Property Management Company or Property Manager, nor how the Trustee is responsible for their actions.

The Trustee also claims that the first cause of action for discrimination under the Section 504 of the Rehabilitation Act (“Section 504”)¹ is subject to demurrer because the Rehabilitation Act does not apply to an individual but programs or federal agencies receiving financial assistance. The argument is well-taken as Congress limited the application of Section 504 to “those who actually ‘receive’ federal financial assistance”. (*United States Dept. of Transportation v. Paralyzed Veterans of America* (1986) 477 U.S. 597, 605.) The FAC does not allege that the Trustee is a program or federal agency receiving financial assistance.

The Court also finds persuasive that the demurrer to the third cause of action for discrimination under FEHA is sustainable because the FAC fails to allege exhaustion of administrative remedies. (*Gupta v. Stanford University* (2004) 124 Cal.App.4th 407, 411 [“failure to exhaust administrative remedies is a proper basis for demurrer.”]) While Plaintiff claims there is an exception due to an “unreasonable delay by the administrative agency” (Opposition, p. 11:16-18), Plaintiff does not provide the legal authority to support the argument. (See *Public Employment Relations Bd. v. Bellflower Unified School Dist.* (2018) 29 Cal.App.5th 927, 939 [“The absence of...citation to authority allows this court to treat the contention as waived.”])

The Court therefore SUSTAINS the demurrer with 20 days’ leave to amend. (Code Civ. Proc., § 430.10, subd. (e).)

Demand for Prejudgment Interest

The Trustee’s demurrer to the FAC’s demand for prejudgment interest is without merit. A demurrer is not the proper procedural vehicle to challenge allegations concerning damages or remedies. (See *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1047 [“[A] demurrer cannot rightfully be sustained to part of a cause of action or to a particular type of damage or remedy.”]) The Court therefore OVERRULES the demurrer to the FAC’s demand for prejudgment interest.

Uncertainty

While the Trustee’s Notice of Demurrer and Demurrer to Plaintiff’s First Amended Complaint identifies uncertainty as a basis for the demurrer, the memorandum of points and authorities do not substantively address this ground. The argument is therefore waived. (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 852 [“When [a party] fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to

¹ Section 504 states, in relevant part: “No otherwise qualified individual with a disability in the United States, as defined in section 7(20) [29 USCS § 705(20)], shall, solely by reason of her or his disability, be excluded from the participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving Federal financial assistance or under any program or activity conducted by any Executive agency or by the United States Postal Service.” (29 U.S.C. 794, subd. (a).)

authority, we treat the point as waived.”]) The Court OVERRULES the demurrer to the first through third causes of action on the ground of uncertainty.

Disposition

The Trustee’s demurrer to the FAC on the ground that Plaintiff improperly names the Trust as a defendant is SUSTAINED with 10 days’ leave to amend.

The Trustee’s demurrer to the first through third causes of action on the ground of failure to state sufficient facts to constitute a cause of action is SUSTAINED with 10 days’ leave to amend.

The Trustee’s demurrer to the demand for prejudgment interest on the ground of failure to state sufficient facts is OVERRULED.

The Trustee’s demurrer to the first through third causes of action on the ground of uncertainty is OVERRULED.

The Court will prepare the Order.

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Calendar Line 6**Case Name:** *John Doe L.M. vs Craig Chandler, et al.***Case No.:** 25CV471073**Plaintiff's Motion to Compel Santa Clara County District Attorney's Office's Compliance with Subpoena for Production of Business Records and Request for Sanctions**

At the outset, the Court notes that the Santa Clara County District Attorney's Office ("SCCDAO") did not file a formal opposition to Plaintiff's motion. However, the absence of an opposition does not automatically entitle Plaintiff to the relief requested. Plaintiff bears the burden of establishing that the requested order is authorized and appropriate under the applicable legal standards. The Court further notes that Plaintiff's moving papers attach correspondence reflecting the SCCDAO's position concerning the subpoena. Although those communications do not constitute a formal opposition, they provide context regarding the nature of the dispute presented, which appears to concern primarily the legal scope of a nonparty deposition subpoena for production of business records.

Plaintiff served a deposition subpoena for production of business records seeking the SCCDAO's complete criminal investigative and prosecutorial file concerning Defendant Chandler, including materials originating from other agencies, such as police reports, search warrant materials, witness interviews, forensic examinations, school records, 911 calls, and audio/video evidence. The SCCDAO produced documents it contends are within its custodial responsibility, including charging documents, case summary materials, certain crime laboratory materials, and discovery transmittal documentation. The SCCDAO declined to produce materials created and maintained by other agencies, asserting that it is not the custodian of records for those materials and cannot provide the required certification under Evidence Code section 1561.

Plaintiff contends that the SCCDAO's reliance on Evidence Code section 1561 and *Cooley v. Superior Court* (2006) 140 Cal.App.4th 1039 is misplaced because authentication requirements concern admissibility rather than discovery, and because the relevant inquiry is whether the records are within the SCCDAO's possession, custody, or control.

The Court recognizes Plaintiff's argument that evidentiary authentication requirements do not necessarily resolve all questions concerning discoverability. However, Plaintiff's subpoena was directed to the SCCDAO as a nonparty custodian of business records. The Court is not persuaded that Plaintiff has established that the SCCDAO may be compelled, through this subpoena procedure, to produce and authenticate records created and maintained by separate governmental entities merely because those records were reviewed, received, or utilized during a criminal prosecution.

The issue before the Court is not whether the requested materials may ultimately be discoverable from an appropriate source. Rather, the issue is whether Plaintiff has demonstrated that the SCCDAO failed to comply with a deposition subpoena for production of business records by declining to produce records for which it asserts it is not the custodian of records.